

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C61
HON. JENNIFER M. MCCARTNEY

Date: 7/10/2026

Courtroom Rules and Notices

The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.

Written responses, oppositions, or filings that are filed later than 12:15 PM the day before the hearing on the motion will go on second call by the Court for the Court to have an opportunity to review any last-minute filings. If a party files a written response, opposition, or any filing after 12:15 PM on the day before the hearing, the party must ensure they are available for the court's afternoon calendar the day of the hearing.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261 – both counsel need to state they are submitting on the tentative. Please do not call the Department unless all parties submit to the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
1	30-2019-01115119 Anaheim Villas LLC vs. Valadez	The Court has read and considered the Defendant's Motion to Remove Eviction (ROA 23) which the Court deems a Motion to Seal and the Proofs of Service by Mail (ROA 31 & 32) serving Mr. Silverstein with notice of the motion. The Court takes Judicial Notice of the Judgment Unlawful Detainer (ROA 15). Pursuant to California Rules of Court, rule 2.550 and 2.551, the Court finds: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest. This was a judgment for possession only of the property; there is no monetary judgment on record; it has been more than six years since the judgment was entered, and it is detrimentally affecting the Defendant from obtaining housing.

		The Court orders that the record of Beverly Ray Sandoval regarding this eviction be sealed and removed from the public records search. The Court Clerk is directed to seal the record and remove the information from the public search methods.
2	30-2023-01333357 Oktogon Santa Ana, LLC vs. Price	The Court has read and considered the Defendants' Motion to Set Aside Default Judgment (ROA 50). The Court takes Judicial Notice of the Declaration in Support of Default Judgment by Court CCP 585(d) (ROA 36), Judgment -Unlawful Detainer (ROA 38), Proof of Service of Summons (ROA 15, 17, 19, 21, & 23) As a threshold matter, California Code of Civil Procedure § 473(b) gives the Court discretion to set aside a default judgment with certain requirements, including that the request "shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." The Unlawful Detainer Judgment in this matter was entered on December 21, 2023; the Defendants did not file their motion to set aside default until June 16, 2026, which is two years, 5 months, and 27 days after the judgment was entered. Charles Price Jr. asserts that he was not a party to the lease agreement but merely an occupant. ROA 36 has attached to it a copy of the Lease Contract for the premises in dispute in the unlawful detainer proceeding. The Lease Contract dated February 26, 2022 lists the "parties" (all people signing the Lease Contract) as Katrina Price, Charles Price Jr., Charles Price Sr., and Shannon Price. No one is listed under "Occupants" on the Lease Contract. Charles Price Jr., along with his mother, father, and sister, signed the lease agreement electronically. California Evidence Code Section 647 creates a rebuttable presumption that a proof of service signed by a registered process server is true. It shifts the burden of proving lack of service to the defendant, rather than requiring the plaintiff to prove proper service. ROA 15 shows that Katrina Price was personally served by registered process server Justin Martin (Orange County #2655) on 7/2/2023 at 2:21 PM. ROA 17, 19, and 21 shows that Charles Sr., Charles Jr., and Shannon were served via substitute service on Katrina Price on the same date and mailed a copy of the summons and complaint. Defendants state, without any evidence to support their claim or to show their move-out date, that they were unaware of the court proceedings and moved out of the premises. The Court finds that the Defendants failed to rebut the presumption under Evidence Code section 647. The Court DENIES the Motion to Set Aside Default and Default Judgment. Plaintiff is ordered to provide notice of the Court's ruling.
6	30-2026-01561001 Yan vs. Wang	Matter will be continued until Wednesday, July 22, 2026 at 8:30 AM for Motion for Summary Judgment on the Court's own motion. The Court Clerk is to provide notice to the parties.

8	30-2026-01564481 Lee vs. Koo	The Court has read the Plaintiff's Motion for Summary Judgment (ROA 60), Defendant's Opposition (ROA 63) and Defendant's Declaration to Support Opposition (ROA 64). Based on the evidence presented, the Court grants the Plaintiff's Motion for Summary Judgment as the Court finds there are no triable issues. California Civil Code section 1947 states, "When there is no usage or contract to the contrary, rents are payable at the termination of the holding, when it does not exceed one year. If the holding is by the day, week, month, quarter, or year, rent is payable at the termination of the respective periods, as it successively becomes due." Defendant entered into a written contract with the Plaintiff for the rental of the premises for a set time frame from 3/15/2025 to 3/14/2026, which required an up-front payment of \$54,000 in rent and a \$ 4,500 security deposit, which the Defendant paid. The Parties then entered into a month-to-month agreement starting on 3/15/2026 for \$ 4,500 per month, payable on the 1st of each month. The rental period for which the Notice to Pay Rent or Quit was filed related to the month-to-month agreement, not to the original agreement for the property. Defendants misstate the applicability of Civil Code section 1947. Plaintiff has established a valid Notice to Pay Rent or Quit which was properly served on the Defendants. Defendants raise in their Opposition that notice of the Motion for Summary Judgment was not proper due to timing. The notice for a California unlawful detainer proceeding only requires 5 days' notice prior to a hearing; Defendant indicated in the opposition that the Motion for Summary Judgment was served via FedEx 9 days in advance of the hearing. Therefore, this is not a valid objection to notice. Lastly, the Defendants argue an issue regarding discovery. Discovery in an unlawful detainer proceeding is closed five days before the first set trial date. Here, the trial date is set for 7/13/2026, so five days in advance of that was July 8, 2026, and no discovery motions were filed prior to that date. Therefore, the Court enters judgment for the Plaintiff for possession of the property located at 122 Excursion, Irvine, CA 92618, County of Orange; forfeiture of the lease. A monetary judgment of \$6677 in past-due rent, holdover damages of \$10,350 (\$150.00 per day for 69 days), and \$1000 in attorneys' fees and court costs. Judgment applies to all unknown occupants or claimants under CCP§ 415.46. A writ of possession shall issue forthwith. Plaintiff is ordered to provide notice of the Court's ruling.
10	30-2026-01567697 Kelly vs. Solomonian	The Court has read and considered the Defendant's Motion for Reconsideration of Denial of Defendant's Motion to Strike Plaintiff's Unlawful Detainer Action (ROA 52), Supplemental Motion for Reconsideration of Denial of Defendant's Motion to Strike Plaintiff's Unlawful Detainer Complaint (ROA 49), and Plaintiff's Opposition (ROA 57). California Code of Civil Procedure section 1008 governs Motions for Reconsideration. When seeking a motion for reconsideration, the Legislature required parties to submit an application based upon new or different facts, circumstances, or law. Defendants fail to establish that the application for reconsideration is based on new or different facts, circumstances, or law. On June 23, 2026, the Defendant orally objected to the Court's tentative ruling on

		the same grounds and with the same information as in the Motion for Reconsideration. A motion to strike is generally used to address defects that appear on the face of a pleading or from matters of which a judge may take judicial notice and that are not grounds for demurrer. (<i>Pierson v. Sharp Memorial Hospital</i> (1989) 216 Cal.App.3d 340, 342.) As to the Defendant's assertion that this Court is acting as an advocate by referencing a code section in its ruling, the Court finds no merit to that charge by the Defendants. The California Court of Appeal held "'Courts are established to discover where lies the truth when issues are contested, and the final responsibility to see that justice is done rests with the judge.'" (<i>People v. Carlucci</i> (1979) 23 Cal.3d 249, 255 [152 Cal. Rptr. 439, 590 P.2d 15] (<i>Carlucci</i>) [discussing Evid. Code, § 775's codification of "traditional case law"]; accord, <i>Conservatorship of Pamela J.</i> (2005) 133 Cal.App.4th 807, 827 [35 Cal. Rptr. 3d 228] (<i>Pamela J.</i>)). As the Court of Appeal in <i>Pamela J.</i> explained, "'It apparently cannot be repeated too often for the guidance of a part of the legal profession that a judge is not a mere umpire presiding over a contest of wits between professional opponents, but a judicial officer entrusted with the grave task of determining where justice lies under the law and the facts between the parties who have sought the protection of our courts. Within reasonable limits, it is not only the right but the duty of a trial judge to clearly bring out the facts so that the important functions of his office may be fairly and justly performed.'" (<i>Pamela J.</i>, at p. 827.)." (<i>In re Emily D.</i> (2015) 234 Cal.App.4th 438, 446-447.) The Court DENIES the Defendant's Motion for Reconsideration as it fails to establish that the application for reconsideration is based on new or different facts, circumstances, or law. Plaintiff is ordered to provide notice of the Court's ruling.
12	30-2026-01570337 Rize LKMS, LLC vs. Richardson	The Court has read and considered the Defendant's Motion to Quash Service of Summons. The Court takes Judicial Notice of the Order to Serve Summons by Posting (ROA 10). The Court DENIES the Defendant's Motion to Quash Service of Summons. The Defendant is ordered to file a responsive pleading in 5 days. The Plaintiff is ordered to provide notice of the Court's ruling.
13	30-2026-01571657 Jefferson Centerpoint LLC vs. Mizner	The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 12), the Complaint (ROA 2), and Plaintiff's Opposition (ROA 18). The Court OVERRULES the Demurrer. On the face of the Complaint, it is legally sufficient to state a cause of action. The Complaint does indicate what type of rental agreement was between the parties, contrary to the allegations in the demurrer.

		The Defendant is ordered to file an Answer within 5 business days. The Plaintiff is ordered to serve notice of the Court's ruling.
14	30-2026-01578483 Liao vs. Romero	The Court has read and considered the Defendants' Motion to Quash Service of Summons (ROA 7) and the Plaintiff's Opposition (ROA 15). The Court takes Judicial Notice of the Proof of Service 10-day Summons & Complaint – Personal (ROA 17) and Proof of Service 10-day Summons & Complaint – Substitute (ROA 11). California Evidence Code Section 647 states that a proof of service filed by a registered process server establishes a presumption that the facts stated in the document are true. Here, registered process server David del Castillo (Orange County #PS-6547) personally served Tavit Kasbarian on 6/25/26 at 8:47 AM, and then substituted served Natalie Romero via her co-defendant after two previous attempts at personal service. Contained within the Defendants' Motion to Quash is an argument akin to a demurrer, in which the Defendants contend that the Complaint fails to meet the minimal requirements for validity. Defendants argue that CCP §1161(2) has specific requirements that the Plaintiff failed to provide and there was no notice as required under CCP §1161(2). The basis of the Complaint as alleged is CCP §1161(1) that there was a fixed-term lease, the fixed-term lease was not extended by agreement, and Defendants failed to vacate; therefore, the Plaintiff seeks to evict them. The Court DENIES the Defendants' Motion to Quash Service. The Defendants are ordered to file a responsive pleading within 5 days. The Plaintiff is ordered to serve notice of the Court's ruling.
15	30-2026-01575983 Arturo Andrade As Trustee Of The Arturo Andrade & Daisy Sarmiento Living Trust vs. Farjardo	The Court has read and considered the Defendant's Motion to Quash Service of Summons (ROA 6). The Court GRANTS the motion to quash service of summons. The Court signed an order to serve summons by posting on 7/8/2026. Plaintiff is ordered to properly serve the Defendant with the Summons and Complaint. The Court will note as this is a commercial tenancy, service should also be in compliance with the notice requirements contained within the lease agreement. The Court Clerk will provide notice of the Court's ruling.